

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002319

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ROSA MARIA AGUILAR
ORTEGA

and

RESPONDENT: VICTORIO GARCIA
TORRES

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

Procedural History

This matter is before the Court on Petitioner/Wife April 16, 2026, Request for Order (RFO) for a change in spousal support. Respondent/ Husband filed a responsive declaration dated May 8, 2026, opposing the request for order, stating that Wife had failed to comply with Marin County Superior Court Local Rules (MCR), Family 7.13. On June 11, 2026, Wife's RFO was continued to July 16, 2026, to give Wife time to file her financial documents in compliance with MCR Fam 7.13.

On June 29, 2026, Wife filed both her Income and Expense (IED) declaration as well as her 2024 and 2025 taxes. In her IED, Wife reports the following:

- She is self-employed and made \$2,756 in wages and \$1,100 in rental income.
- She also reports having \$3,820 a month in expenses.

Wife's federal tax returns show the following:

- Wife's 2025 taxes report annual net profit from her housecleaning business, after expenses, of \$9,832, which includes \$1,601 car/truck expenses and \$912 for cellular service. These expenses, while valid expenses for tax purposes, inure to Wife's benefit and can be added back, which increases Wife's profit to \$12,345 annually, or \$1,029 per month.
- Wife's 2025 tax return also reports \$64,094 in gambling income, or \$5,341 per month.

On May 8, 2026, Husband filed both his Income and Expense (IED) declaration as well as his 2024 and 2025 taxes. Along with his IED, Husband submitted pay stubs for his jobs.

Husband's works a total of 70 hours/week at two jobs; at the Good Earth and at Marinwood Markets. Husband's income from Good Earth, based on his 3 pay stubs, is \$5,382 a month. His income from Marinwood Market, based on his 3 pay stubs, is \$3,987 a month,

for a total income of \$9,369 per month. He reports \$6,693 in monthly expenses, including \$274 for health insurance and \$270 for his 401K contribution.

This is a post-judgment request; the Judgment “reserved” on spousal support. No amount was set for spousal support and there is therefore no amount to modify; instead, the parties “reserved” the ability to set an initial spousal support order. No change of circumstances is required.

Analysis under Family Code §4320

In addressing a post-judgment request for spousal support, the Court must consider the factors outlined in Family Code §4320.

1. *The extent of earning capacity to maintain the standard of living established during the marriage.*

Husband works two jobs, an average of 70 hours a week, to support his new wife and children who are in Mexico.

Wife has been working as a house cleaner since 2000 and despite her health issue in 2025, she had income from house cleaning and from gambling in both 2024 and 2025. Wife has been able to maintain her standard of living since the date of separation 9 years ago.

2. *The extent to which the supported party contributed to the supporting party's education, training, and career path.*

Not applicable

3. *Supporting party's ability to pay.*

If the Court were to order support, Husband does have the ability to pay some support.

4. *Each party's needs based on the standard of living.*

Based on Wife's Income and Expense Declaration, Wife earns more than enough income to cover her monthly expenses.

5. *Obligations and Assets.*

Husband reports that he supports his new wife, 2 children, and his parents.

Wife reports that in 2025 she had less work due to doctors' appointments and follow ups after her heart attack in 2025, which caused her to fall behind on her bills.

6. *Duration of the marriage.*

Marriage lasted 9 years and 10 months. The parties were married on 8/10/2007 and separated on 6/6/2007. The Court could view this as a long-term marriage. The parties' divorce was finalized on 04/14/2026.

7. *The supporting party's ability to be gainfully employed without interfering with the interests of the dependent children.*

There are no children of this relationship.

8. *Each party's age and health.*

Wife is 61 and in July of 2025 she suffered a heart attack which resulted in her needing to have surgery.

Husband is 47 and in good health.

9. *History of domestic violence.*

There is no history of domestic violence

10. *Immediate and specific tax consequences to each party.*

None

11. *Balance of hardships.*

The parties have been separated for over 9 years and Wife has maintained her standard of living on her own. Wife's financial information shows she earns double what she needs to meet her expenses. Ordering Husband to pay spousal support could possibly create a hardship for Husband.

12. *Criminal convictions.*

The court is unaware of any criminal convictions for abusing a spouse.

13. *Any other relevant factors.*

Based on the information provided to the Court, Wife does not present a need to meet her monthly living expenses that would create a need to order Husband to pay spousal support.

Based on an analysis of the above factors, Wife has not demonstrated a need for spousal support. Accordingly, Wife's request for spousal support is DENIED.

As authorized by CRC Rule 5.125, the Court shall prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/16/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002864

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: RON RODRIGUES

and

RESPONDENT: NIKA WYNNYK

NATURE OF PROCEEDINGS: REQUEST FOR ORDER– CHILD CUSTODY/VISITATION

RULING

Procedural History

This matter is before the Court on Respondent/Mother's May 27, 2026, Request for Order (RFO) for custody and visitation orders regarding the parties' son, Jackson (DOB: 06/04/2021). Petitioner /Father filed a responsive declaration on July 2, 2026.

Mother requests Joint legal and physical custody, with a 2/2/3 visitation schedule unless Father hasn't found a place to live, then she would request sole legal and sole physical custody with visitation to Father.

Father requests joint legal and sole physical custody amongst other custody and visitation requests, including Mother not consume alcohol or controlled substances 24 hours prior to or during her parenting time, that Bochy the beagle dog be shared equally in line with parenting time with Jackson, guideline child support and attorney fees.

Both parties were interviewed together by Family Court Services (FCS) as well as L. Hairston, CFS Investigating Worker. FCS issued its report and recommendations on July 14, 2026. Neither party submitted a statement of agreement/disagreement.

Parenting Plan

The Court has reviewed the submissions of the parties together with the report prepared by FCS. The Court finds good cause and that it is in the best interest of the child, Keyler (DOB: 03/30/2020), to adopt the recommendations of Family Court Services (FCS), as set forth in its report issued on July 9, 2026, as modified by the Court, as follows:

Parental Responsibilities